

Tentative Rulings and Resolution Review Hearings
September 14, 2026
Department 64

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

******IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.******

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time. The access code is 2480 682 3750. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

1. Please mute your telephone until your case is called.
2. Please do not place the call on hold.
3. Minimize all background noise during your call.
4. Please identify yourself, each time, prior to speaking with the court.
5. Disconnect when the court has completed your case or cases.
6. The court prohibits the recording of these proceedings.

8:30 a.m. Law and Motion

IN RE: BEHNKE

CASE NUMBER: 26CV-0211150

Tentative Ruling on Petition for Change of Name: Petitioner Claudya June Behnke seeks to change her name to C.J. Bunny Behnke. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

IN RE CHRISTIAN

CASE NUMBER: 26PB-0033218

Tentative Ruling on Three Petitions to Approve Minor Compromise: Ashish Christian seeks an order approving the compromise of claim on behalf of his minor son Josiah Christian. California Rules of Court, Rule 7.950 provides that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition provides the required information. Considering the nature of the minor's injuries and full recovery, the Court is prepared to find that the settlement is in the best interest of the minor, if the voir dire process is completed to the Court's satisfaction.

The Court notes this is not an expedited petition brought on Judicial Council Form MC-350EX. See CRC Rule 7.950.5. Hearing is needed on the Petition before it can be approved. The person seeking approval of the settlement on behalf of the minor and the minor are required to appear at the hearing, unless good cause is presented for their non-appearance. CRC Rule 7.952. The Petitioner and minor are required to appear. Counsel will voir dire the Petitioner about the terms of the settlement, any other potential sources to increase the settlement amount, whether the minor has fully recovered and whether the Petitioner understands that once approved, the settlement is final and binding on the minor. If satisfied, the Court intends to grant the Petition. If granted, the Court will execute the Orders and schedule a hearing for review regarding confirmation of deposit.

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on August 7, 2026, to Petitioner and Counsel for failure to appear at the July 27, 2026 hearing. Counsel has submitted a Declaration in response to the OSC which explains the failure to appear. The OSC is **DISHCHARGED**. No sanctions will be imposed.

CLARK VS. HAYS

CASE NUMBER: 26CVG-01400

Tentative Ruling on Demurrer and Motion to Strike: Defendant Irina Hays demurs to the first and second causes of action in the Complaint, and moves to strike Item 5, 6, Attachment BC-2 and the alleged interest commencement date. Plaintiff opposes the demurrer and motion to strike.

Standard for Demurrer A demurrer should be sustained if the complaint fails to "state facts sufficient to constitute a valid cause of action." CCP § 430.10(e). A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff's allegations must be accepted as true for the purpose of

ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff's causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

First Cause of Action – Breach of Contract. To state a cause of action for breach of contract, Plaintiff must allege: (1) the existence of a contract, (2) the plaintiff's performance or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damages to the plaintiff. *Aton Center, Inc. v. United Healthcare Ins. Co.* (2023) 93 Cal. App. 5th 1214.

Plaintiff has adequately alleged the existence of a contract (attached as Exhibit A), as well as Plaintiff's performance, defendant's breach by failure to pay attorney fees when billed, and resulting damages of \$18,290.67. Plaintiff has adequately stated a cause of action for breach of contract. The Demurrer to the first cause of action is **OVERRULED**.

Second Cause of Action – Common Counts. Plaintiff's Opposition to the Demurrer states that there is only one cause of action alleged – for breach of contract – in his Complaint. He argues "The other two complaints that were checked have a line drawn through them, effectively leaving only one cause of action for Breach of Contract." Plaintiff further explains that this line may not have been visible in the photocopy. The Court has reviewed its copy of the Complaint and finds that it currently alleges both Breach of Contract and Common Counts at Item 8. Based on Plaintiff's Opposition, it appears that this is unintentional. The Demurrer to the second cause of action is **SUSTAINED** with leave to amend. Plaintiff is ordered to file a First Amended Complaint to correct the error.

Standard for Motion to Strike A motion to strike reaches only "irrelevant, false, or improper matter inserted in any pleading" or matter "not drawn or filed in conformity with the laws of this state." (Code Civ. Proc., § 436.) As with a demurrer, the court's review is limited to the face of the challenged pleading and matters subject to judicial notice; the allegations of the complaint are accepted as true, and extrinsic evidence offered by either side to create or resolve factual disputes is not properly considered on this motion. Code Civ. Proc., § 437(a).

Defendant moves to strike Items 5 and 6 of the form pleading, Attachment BC-2, as well as allegations she argues are inconsistent or factually unsupported. These items and allegations are not irrelevant, false, or improper matter. Defendant will have the opportunity to defend the merits of the case at a later stage. Here, the pleadings are drawn in conformity with the law and the Motion to Strike is **DENIED**.

Notice of Client's Right to Fee Arbitration Business and Professions Code section 6201(a) requires an attorney to give written notice of a client's right to arbitration of attorney-client fee disputes. Failure to do so is a ground for dismissal of the action. Here, Plaintiff has not provided any evidence of compliance with BPC § 6201(a). The Complaint does not allege compliance. The mandatory California State Bar Form is not attached to the Complaint. Plaintiff is ordered to file a First Amended Complaint which properly alleges compliance with this statute, including proof of service of the required Notice.

The Demurrer is **SUSTAINED** in part and **OVERRULED** in part as detailed above and the Motion to Strike is **DENIED**. Plaintiff is ordered to file and serve a First Amended Complaint within 30 days of today's date which corrects the defects noted above, specifically: 1) amending

to remove the Second Cause of Action for Common Counts, and 2) alleging compliance with the required Notice of Client's Right to Fee Arbitration. This matter is set for review regarding status of amended complaint on **Monday, October 19, 2026 at 9:00 a.m. in Department 64.**

IN RE COTTRELL

CASE NUMBER: 26CV-0211177

Tentative Ruling on Petition for Change of Name: Petitioner Richard Cottrell seeks to change the name of his minor son. Proof of publication has been filed. When a petition to change the name of a minor is brought by one parent only, the nonconsenting parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). In the alternative to personal service, the Court may order notice be given in another manner the Court determines is reasonably calculated to give actual notice to the non-consenting parent. CCP § 1277(a)(4). No proof of service is on file. This matter is continued to **Monday, November 16, 2026, at 8:30 a.m. in Department 64** to permit service on the mother. Petitioner shall file an Amended Order to Show Cause ("Amended OSC") for the continued hearing date. The Amended OSC must be personally served on the mother at least 30 days before the continued hearing date. No appearance is necessary on today's calendar.

DEBT MGMT VS. KEOMORAKOTH

CASE NUMBER: CVG21-0000801

Tentative Ruling on Claim of Exemption: Judgment Debtor Thandarr Keomorakoth claims an exemption from wage garnishment on the basis that their earnings are needed to support themselves and their family. Claimant has provided a completed Financial Statement which provides their income and monthly expenses.

Pursuant to Federal Law, 75% of disposable income is automatically exempt (i.e. the maximum that can be withheld is 25% of disposable income). 15 USC § 1673(a). Section 1672(b) of Title 15 of the United States Code defines "disposable earnings" as "that part of the earnings of any individual remaining after the deduction from those earnings of any amounts required by law to be withheld." CCP § 706.011 provides an almost identical definition. California permits the exemption of all income that a judgment debtor proves is necessary for the support of the judgment debtor or the judgment debtor's family. CCP § 706.051(b). Finally, it should be noted that the judgment debtor has the burden of proof. CCP § 703.580. The evidentiary support for a wage garnishment exemption is typically found in the required Financial Statement.

The Financial Statement shows that Claimant has three dependents. Their claimed expenses fall slightly below their monthly take home pay. However, the Court finds that the claimed expenses are excessive. Therefore, the Court will subtract \$200 from phone/utilities, \$100 from transportation, \$100 from laundry/cleaning, and \$200 from childcare. Under the new calculation, Claimant's monthly expenses total \$4,649 which means that they have \$651.12 in disposable income. Pursuant to statute, 25% of that may be withheld, so garnishment will be permitted in the amount of \$162.78 per month.

The Claim of Exemption is **GRANTED** and garnishment shall be limited to \$162.78 monthly. Judgment Creditor did not submit a proposed Order Determining Claim of Exemption. Judgment Creditor is directed to submit the proposed Order for execution.

DISCOVER BANK VS. DRISKILL

CASE NUMBER: 25CVG-00740

Tentative Ruling on Motion to Set Aside Default: Defendant Lee Driskill moves to set aside default judgment pursuant to CCP 473(b) on the grounds of surprise and excusable neglect. The Motion was properly noticed, and Plaintiff Discover Bank has not filed an opposition.

Merits. CCP § 473(b) permits the Court to set aside a default or order entered against an aggrieved party due to mistake, surprise, inadvertence or excusable neglect. The burden is on the moving party to show that the neglect was *excusable*: i.e., that the default could not have been avoided through the exercise of ordinary care. *Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58. “[T]he acts which brought about the default must have been the acts of a reasonably prudent person under the same circumstances.” *Id.* The moving party has the burden of proof to establish one of these conditions by a preponderance of the evidence. *Luz v. Lopes* (1960) 55 Cal.2d 54, 62. The moving party must submit affidavits or testimony demonstrating a reasonable cause for the default. *Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1491. CCP § 473(b) is to be liberally construed to further the policy of adjudicating legal controversies on the merits. *Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1146.

Here, Defendant has submitted sufficient evidence in the form of a sworn declaration that his failure to file a responsive pleading was due to excusable neglect, based on a sudden and severe illness. Defendant has also filed a proposed answer demonstrating meritorious defenses. Defendant has met his burden under CCP § 473(b).

The Motion to Set Aside Default is **GRANTED**. The Default is **VACATED**. No proposed order has been lodged as required by Local Rule 5.17(D). Defendant is ordered to submit a proposed order. Defendant is granted fifteen days leave from today’s date to file and serve his responsive pleading. The proposed answer is not deemed filed.

FIRST-CITIZENS BANK & TRUST COMPANY VS. RISE CUSTOM APPAREL LLC, ET AL.

CASE NUMBER: 26CV-0209773

Tentative Ruling on Motion to Strike: Plaintiff moves to strike the Answer filed by Defendant Rise Custom Apparel, LLC, enter default, and impose sanctions. The grounds are that Defendant is impermissibly proceeding in pro per. The matter is properly noticed and is unopposed.

Meet and Confer. Code of Civil Procedure 435.5(a) provides that before filing a motion to strike, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike. The Declaration of Plaintiff’s counsel indicates only that a meet and confer letter was sent. This does not establish compliance with the statute.

Standard for Motion to Strike. A motion to strike reaches only "irrelevant, false, or improper matter inserted in any pleading" or matter "not drawn or filed in conformity with the laws of this state." (Code Civ. Proc., § 436.) As with a demurrer, the court's review is limited to the face of the challenged pleading and matters subject to judicial notice; the allegations of the complaint are accepted as true, and extrinsic evidence offered by either side to create or resolve factual disputes is not properly considered on this motion. Code Civ. Proc., § 437(a).

Plaintiff moves to strike the Answer on the grounds that Defendant is not represented by counsel, and is proceeding in pro per. Plaintiff is correct that “[U]nder a long-standing common law rule of procedure, a corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney. It must be represented by licensed counsel in proceedings before courts of record.”]; *Blue Water Sunset, LLC v. Markowitz* (2011) 192 Cal.App.4th 477, 491 [122 Cal. Rptr. 3d 641] [“The limited liability companies may wish to take an active role in the litigation. If so, the weight of authority indicates that the limited liability companies must obtain independent counsel.”]” *Norman v. Strateman* (2025) 112 Cal.App.5th 92, 105, fn. 5.

“Where the defect raised by a motion to strike or by demurrer is reasonably capable of cure, leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question. A pleading may be stricken only upon terms the court deems proper. It is generally an abuse of discretion to deny leave to amend, because the drastic step of denial of the opportunity to correct the curable defect effectively terminates the pleader's action.” *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146-1147 (internal citations omitted).

“...it is more appropriate and just to treat a corporation's failure to be represented by an attorney as a defect that may be corrected, on such terms as are just in the sound discretion of the court. First and foremost, this approach honors the cornerstone jurisprudential policies that, in furtherance of justice, complaints are to be liberally construed (§ 452) and disputes should be resolved on their merits.” *Id.* at 149.

Here, the Court will exercise its discretion to treat the Defendant's failure to be represented by an attorney as a defect that may be corrected. The Court will permit Defendant Rise Custom Apparel, LLC the opportunity to correct this defect by obtaining representation. The clerk is **directed** to issue an Order to Show Cause re retention of counsel. Defendant will have 30 days from notice of issuance of the OSC to retain counsel and file an association of counsel in this matter. The matter is set for hearing on the Order to Show Cause, as well as for further proceedings on the Motion to Strike, on **Monday, November 2, 2026 at 8:30 a.m. in Department 64.**

GEROSIN, ET AL. VS. REDDING SENIOR LIVING LLC, ET AL.

CASE NUMBER: 25CV-0209491

Tentative Ruling on Motion to Compel Further Responses: Plaintiffs move for an order compelling further responses to: 1) Plaintiff's Form Interrogatories, Set One (Nos. 3.7, 4.1, 12.1-12.3, 12.5-12.7, 14.1, 14.2, 16.1, 17.1, 50.1 and 50.3); 2) Special Interrogatories, Set One (Nos. 1-27, 29-36, 40, 42, 43, 47-52); 3) Requests for Admission, Set One (Nos. 11, 35, 36); and 4) Requests for Production, Sets One and Two (Nos. 1-16; 18-101). Plaintiffs further request the responses be verified, complete and straightforward, free of unsupported objections, compliant with CCP § 2031.280 by identifying documents responsive to each request, and where responsive documents do not exist or cannot be produced, state so clearly. Plaintiffs also request sanctions. Defendants oppose the Motion.

Merits. On receipt of a response to a demand for inspection or to interrogatories, a propounding party may move for an order compelling further responses if the responses are inadequate. CCP §§ 2031.310(a), 2030.300(a). A motion to compel further responses for production must show “good cause” for the request. CCP § 2031.310(b)(1). The motion must be accompanied by a meet

and confer declaration under Section 2016.040. CCP §§ 2030.300(b) and 2031.310(b). The Declaration of Megan Yarnall does not state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion, as required by section 2016.040.

Plaintiff has filed a single motion addressing five sets of discovery. The motion identifies five defects alleged to be common to all sets of discovery. The Court's ruling will follow this same format for clarity.

1. The responses are unverified.

The Declaration of Alaina Dickens, Defendant's counsel, establishes that verifications were provided on August 24, 2026. This issue is therefore moot.

2. Document production is not meaningfully identified – Defendant produced 2,200 pages of documents without identifying which are responsive to which requests.

Defendant is ordered to produce Bates stamped documents and to identify which are responsive to which requests. This order does not encompass a requirement that Defendant compile any new records.

3. Document production is internally inconsistent. Defendant represents it will produce additional responsive documents while stating that no additional responsive documents exist, so plaintiff cannot determine if production is complete.

Taking RFP No. 65 as an example, the Court finds Defendant's response is ambiguous in that it states: "After performing a diligent search and reasonable inquiry in an effort to comply with this demand, Responding parties *will comply* and produce the documents responsive to this request in their possession, custody or control. Responding Parties *have no additional documents* in their possession that are responsive to this request..." It is unclear from this response whether Defendants have performed a diligent search and reasonable inquiry, and whether they intend to represent their production is complete. Further responses are ordered.

4. Document Production is Incomplete.

Defendant is ordered to either represent that the production is complete after a diligent search and reasonable inquiry, or to produce further responsive documents.

5. Objections are unsupported. Boilerplate objections are used repeatedly without providing the factual showing necessary to justify withholding responsive information.

The Court finds that the objections are appropriate. No further production is ordered on the basis of objections.

Sanctions: Both sides request monetary sanctions pursuant to CCP §§ 2030.290(c), 2031.300(c), and 2033.280(c). Sanctions are mandatory against the unsuccessful party, absent substantial justification or other circumstances that would make imposition of the sanctions unjust. Here, the

Court finds that each party was unsuccessful in part and each had substantial justification for their position. Verifications were not provided timely, but Plaintiff did not adequately meet and confer before bringing this dispute before the Court. No sanctions will be imposed.

Going forward, the parties are required to meet and confer **by telephone or in person** as required by the Code of Civil Procedure. Additionally, the Court notes that Plaintiff's single Motion concerns five different sets of discovery and seeks further responses to nearly everything requested. Defendant's response to the Separate Statement runs to nearly 400 pages. To promote judicial economy, the parties are encouraged to contact the judicial assistant and request an informal discovery conference to narrow the issues prior to filing future discovery motions.

Plaintiff's Motion to Compel Further Verified Responses to Form Interrogatories, Set One; Special Interrogatories, Set One; Requests for Admissions, Set One; and Requests for Production of Documents, Sets One and Two is **GRANTED** in part, as detailed above. Plaintiff is ordered to submit a new proposed order consistent with this ruling. Defendant will be required to serve further responses as detailed above within 30 days of notice of entry of order.

LAURENCE VS. HOLT OF CALIFORNIA

CASE NUMBER: 25CV-0207217

Tentative Ruling on Motion to Strike Jury Demand and Posting of Jury Fees: Plaintiff Christopher Laurence was employed as a union field mechanic at Defendant Holt of California's Redding location from January 9, 2024 through May 13, 2024. Plaintiff filed his PAGA Complaint on March 11, 2025 alleging 8 causes of action ("PAGA claims"). Plaintiff filed a separate individual Complaint on June 17, 2025, alleging the same 8 causes of action ("Individual Claims"). The actions were consolidated by Court Order on September 15, 2025. Defendant moves pursuant to CCP 435(b)(1) and 436 for an Order striking Plaintiff's jury demand and posting of jury fees. Plaintiff opposes the Motion.

PAGA Claims: Plaintiff and Defendant agree that there is no right to a jury trial on the PAGA claims. "[A] PAGA action is an administrative enforcement action conducted in court on behalf of the state by an aggrieved employee who possesses 'the same legal right and interest' as the state. (*See Iskanian, supra*, 59 Cal.4th at 380.) However, that legal right and interest does not include the right to a jury trial. (*McHugh v. Santa Monica Rent Control Bd.* (1989) 49 Cal.3d 348.)" *LaFace v. Ralphs Grocery Co.* (2022) 75 Cal.App.5th 388, 397.

Individual Claims: Defendant argues that Plaintiff is not entitled to a jury trial on his individual claims because: 1) the claims are intertwined and cannot be bifurcated; 2) judicial estoppel precludes jury trial on any claims, because Plaintiff did not oppose the motion to consolidate, agreed to vacate his individual jury trial, and has referred to the matter as "PAGA-only" in prior filings; and 3) Plaintiff posted jury fees late based on the older, PAGA action's deadline.

"As a general matter, therefore, the California Constitution affords a right to a jury trial in common law actions at law that were triable by a jury in 1850, but not to suits in equity that were not triable by a jury at that time. (*C & K Engineering Contractors v. Amber Steel Co.* (1978) 23 Cal.3d 1, 8–9 [151 Cal. Rptr. 323, 587 P.2d 1136].) Under this test, it is the substance of a cause action—not its title or form—that is controlling. (*Nationwide Biweekly, supra*, 9 Cal.5th at p. 315.) In making this evaluation we look to the gist of the action: whether the nature of the rights involved and the facts of the particular case show that it is legal and therefore cognizable at law. (*Ibid.*)" *LaFace v.*

Ralphs Grocery Co. (2022) 75 Cal.App.5th 388, 395.

Plaintiff's individual claims for Labor Code violations are generally triable to a jury. Plaintiff's individual claims are for unpaid wages, overtime, meal and rest period premiums, business expense reimbursement, wage statement penalties, and waiting time penalties, for which he seeks damages or statutory penalties. The gist of the individual claims is an action at law, which carries the right to a jury trial. *See generally LaFace, supra*. "When the legal and equitable causes of action or issues presented in a case are severable, past California decisions establish that a party retains the right to a jury trial of the severable legal issues and a court trial of the severable equitable issues. (See, e.g., *Connell v. Bowes* (1942) 19 Cal.2d 870, 871 [123 P.2d 456] ["It is now established in this state ... that if a complaint states two complete rights of action, one legal and one equitable, a jury trial may be obtained upon the issues raised by the legal cause"]; see generally 7 Witkin, Cal. Procedure, *supra*, Trial, § 86, p. 113 ["Where the action is of a hybrid character, raising both legal and equitable issues, a party is entitled to a jury trial of the severable legal issues"].)" *Nationwide Biweekly Administration, Inc. v. Superior Court* (2020) 9 Cal.5th 279, 316-317. The question, then, is whether Plaintiff waived the right to a jury trial of his legal claims through the consolidation of the first-filed PAGA action with the later-filed individual action.

"Our Constitution treats the historical right to a jury resolution of disputes that have been brought to a judicial forum as fundamental, providing that in "a civil cause," any waiver of the inviolate right to a jury determination must occur by the consent of the parties to the cause as provided by statute. (Cal. Const., art. I, § 16.) The statute implementing this constitutional provision is section 631. It holds inviolate the right to trial by jury, and prescribes that a jury may be waived in civil cases only as provided in subdivision (d) of its provisions. (§ 631, subd. (a).) Subdivision (d) describes six means by which the right to jury trial may be forfeited or waived, including failure to appear at trial, failure to demand jury trial within a specified period after the case is set for trial, failure to pay required fees in advance or during trial, oral consent in open court, or written consent filed with the clerk or the court." *Grafton Partners v. Superior Court* (2005) 36 Cal.4th 944, 951.

Here, the Court finds that Plaintiff did not waive his right to a jury trial on his individual claims by failing to oppose the Defendant's motion to consolidate the two actions. Further, the Court finds that the posting of jury fees was timely, in that fees were posted within 365 days of the filing of the Complaint for which Plaintiff was entitled to a jury trial (the individual claims). CCP § 631. The later order consolidating cases did not shorten Plaintiff's window to file jury fees on the jury-triable claims.

Finally, the Court finds that Plaintiff's individual claims are not necessarily so intertwined with the PAGA claims that bifurcation is not feasible. The Court intends to set a single, sequential trial, with a jury phase on the individual claims to proceed first, immediately followed by a bench phase if necessary, on the PAGA claims before the same judge. If the legal issues are tried before the equitable issues, the jury's determination of the legal issues may curtail or foreclose a trial of the equitable issues. *Hoopes v. Dolan* (2008) 168 Cal. App. 4th 146, 157. In any subsequent trial of the equitable issues, the judge is bound by the jury's findings of fact on common issues. *Id.* at 158-161 (judge may make own findings only on issues based on distinct facts that jury did not decide).

Defendant's Motion to Strike Jury Demand and Posting of Jury Fees is **DENIED**. The proposed order will be modified.

PORTFOLIO RECOVERY ASSOCIATES, LLC VS. DRISKILL

CASE NUMBER: 25CVG-02662

Tentative Ruling on Motion to Set Aside Default: Defendant Lee Driskill moves to set aside default judgment pursuant to CCP 473(b) on the grounds of surprise and excusable neglect. Plaintiff Portfolio Recovery Associates, LLC opposes the Motion.

Merits. CCP § 473(b) permits the Court to set aside a default or order entered against an aggrieved party due to mistake, surprise, inadvertence or excusable neglect. The burden is on the moving party to show that the neglect was *excusable*: i.e., that the default could not have been avoided through the exercise of ordinary care. *Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58. “[T]he acts which brought about the default must have been the acts of a reasonably prudent person under the same circumstances.” *Id.* The moving party has the burden of proof to establish one of these conditions by a preponderance of the evidence. *Luz v. Lopes* (1960) 55 Cal.2d 54, 62. The moving party must submit affidavits or testimony demonstrating a reasonable cause for the default. *Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1491. CCP § 473(b) is to be liberally construed to further the policy of adjudicating legal controversies on the merits. *Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1146.

Here, Defendant has submitted sufficient evidence in the form of a sworn declaration that his failure to file a responsive pleading was due to excusable neglect, based on a sudden and severe illness. Defendant has also filed a proposed answer demonstrating meritorious defenses. Defendant has met his burden under CCP § 473(b).

The Motion to Set Aside Default is **GRANTED**. The Default is **VACATED**. No proposed order has been lodged as required by Local Rule 5.17(D). Defendant is ordered to submit a proposed order. Defendant is granted fifteen days leave from today’s date to file and serve his responsive pleading. The proposed answer is not deemed filed.

THOMAS VS. WALKER

CASE NUMBER: 24CV-0206590

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions (“OSC”) issued on August 7, 2026, to Plaintiff and Counsel for failure to appear at the July 27, 2026 hearing. A response to the OSC has been filed. The OSC is **DISCHARGED**. Sanctions will not be imposed. The Court confirms today’s review hearing set for 9:00 a.m.

WELLS FARGO BANK, N.A. VS. PANGELINA

CASE NUMBER: 25CVG-02656

Tentative Ruling on Motion to Deem Requests for Admissions Admitted: Plaintiff Wells Fargo Bank, N.A., seeks an order deeming admitted the truth of matters specified in Plaintiff’s Request for Admissions, Set One, which was served on Defendant Sandra Pangelina by mail on June 29, 2026. The Motion has been properly noticed and is unopposed.

When a party fails to respond to a request for admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare*

Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal. App. 4th 390. Here, Plaintiff's moving papers sufficiently demonstrate that the discovery was served by mail, and Defendant has failed to respond within the required time frame. The request to deem the matters admitted is granted.

Monetary sanctions are mandatory per CCP 2033.280(c). However, Plaintiff did not request sanctions and did not provide any basis for determining a reasonable amount. No sanctions will be imposed.

Plaintiff's Motion to Deem Request for Admission, Set One Admitted by Defendant Sandra Pangelina is **GRANTED**. A proposed order has been lodged and will be executed.

IN RE: WITT

CASE NUMBER: 26CV-0211146

Tentative Ruling on Petition for Change of Name: Petitioner William Eulis Witt seeks to change his name to William James Witt. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

WRIGHT VS. BURLINGTON COAT FACTORY OF TEXAS, INC, ET AL.

CASE NUMBER: 25CV-0209085

Tentative Ruling on Motion for Summary Judgment: Defendant Burlington Coat Factory Texas, Inc. ("BCFT") moves for summary judgment as to all claims asserted against it. The motion is brought on the grounds that BCFT did not breach their duty of care. Plaintiff Terry Wright opposes the motion.

Evidentiary Objections. Plaintiff objections to Exhibit A on the grounds that it is not based on personal knowledge and to Exhibit D on the grounds that it has not been authenticated. Plaintiff's objections are **SUSTAINED**. Defendant objections to the consideration of any arguments and/or facts raised by the deposition of PQM Spencer Webster because the deposition was not provided as an exhibit. Defendant also objection to the photograph contained in the Declaration of Anthony Andre, Ph.D. purportedly showing the vestibule area of the subject store because it was not disclosed during discovery and has not been authenticated. Defendant's objections are also **SUSTAINED**.

Factual Background. This is a personal injury action arising out of a trip and fall at the Burlington Coat Factory store located in Redding, California. Plaintiff alleges that on December 2, 2023, she entered the vestibule area of the store during a time when it had rained or was raining and slipped and fell resulting in her injuries due to a hazard created by rainwater on the floor. Plaintiff alleges that BCFT's failure to maintain safe conditions and/or adequately warn of the hazard was the cause of her injuries.

Standard on Summary Judgment. The party moving for summary judgment bears the initial burden to make a prima facie showing that there are no triable issues of material fact. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850. There is a genuine issue of material fact only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* at 845. A defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that

one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1). The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. CCP § 437c(p)(2).

In ruling on a motion for summary judgment, the Court must consider not only the direct evidence presented, but also reasonable inferences to be drawn therefrom, and must view the evidence and inferences “in the light most favorable to the opposing party.” CCP § 437c(c); *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 843. “Because summary judgment is a drastic measure that deprives the losing party of trial on the merits, it may not be invoked unless it is clear from the declarations that there are no triable issues of material fact.” *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 304. “A summary judgment motion is directed to the issues framed by the pleadings. Those are the only issues a motion for summary judgment must address.” *Van v. Target Corp.* (2007) 155 Cal. App. 4th 1375, 1387.

Here, Plaintiffs’ Complaint alleges two causes of action for premises liability and negligence. “The elements of a premises liability claim such as the one at issue in these proceedings are: a legal duty of care; breach of that duty; and proximate cause resulting in injury. *See Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1158.” *Moses v. Roger-McKeever* (2023) 91 Cal. App. 5th 172, 177–78. “The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury.” *Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1158.

“Section 1714 of the Civil Code sets forth “the basic policy of this state” with respect to injuries caused by a dangerous condition on land, which “is that everyone is responsible for an injury caused to another by his want of ordinary care or skill in the management of his property.” *Martin v. Gladstone* (2023) 96 Cal.App.5th 681, 689. “The proper test to be applied to the liability of the possessor of land in accordance with section 1714 of the Civil Code is whether in the management of his property he has acted as a reasonable man in view of the probability of injury to others, and, although the plaintiff’s status as a trespasser, licensee, or invitee may in the light of the facts giving rise to such status have some bearing on the question of liability, the status is not determinative.” *Rowland v. Christian* (1968) 69 Cal.2d 108-118-119.

Here, BCFT’s Motion seeks to negate the element of breach of duty. The Motion is premised on BCFT’s argument that it did not breach the duty of care because it provided a black rubber anti-slip mat and yellow caution sign in the vestibule area which provided sufficient protection from and warning of the hazard. Plaintiff contends that BCFT’s conduct fell below the standard of care. BCFT attempts to argue that the standard of care is irrelevant, however a “breach is the failure to meet the standard of care.” *Coyle v. Historic Mission Inn Corp.* (2018) 24 Cal.App.5th 627, 643.

There is no dispute that BCFT was the possessor responsible for the premises, that BCFT owed a duty to its customers, or that Plaintiff slipped and fell in the vestibule area of the store. However, there is a dispute regarding whether the actions taken by BCFT were sufficient to meet or fell below the standard of care. BCFT contends that the black rubber anti-slip mat and yellow caution sign were sufficient to protect and warn against the hazard. Plaintiff argues that BCFT’s failure to

take alternative precautions such as dry mopping the area and the location/obstruction of the yellow caution sign fell below the standard of care. The Court finds there is genuine dispute of material fact regarding whether BCFT's conduct fell below the standard of care resulting in a breach of duty. "Thus, it is the jury that "has the burden of deciding not only what the facts are but what the unformulated standard is of reasonable conduct" [Citation]. In sum, it is the trier of fact who decides what the facts are and what reasonable care means within those facts." *Coyle v. Historic Mission Inn Corp.*, supra, 24 Cal.App.5th 627, 640.

BCFT argues that they had no duty to provide any further mitigation or warning of the hazard because it was open and obvious. "Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition." *Krongos v. Pacific Gas & Electric Co.* (1992) 7 Cal.App.4th 387. "[W]hile the obviousness of the condition and its dangerousness may obviate the landowner's duty to remedy or warn of the condition in some situations, such obviousness will not negate a duty of care when it is foreseeable that, because of necessity or other circumstances, a person may choose to encounter the condition." *Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438. Considering the vestibule area encompasses the entrance of the store, it would have been necessary for customers such as Plaintiff to encounter the condition. The Court finds BCFT's defense that the open and obvious hazard negates their duty of care fails.

Defendant's Motion for Summary Judgment is **DENIED**. Defendant lodged a proposed order that will be modified to reflect the Court's ruling.

9:00 a.m. Review Hearings

AHERN, DO, ET AL. VS. PARK, RN

CASE NUMBER: 25CV-0209394

This matter is on calendar for review regarding status of arbitration. No status statements have been filed as ordered. Appearances are necessary on today's calendar to provide a status of arbitration.

CESSNA VS. BROCK

CASE NUMBER: 23CV-0202145

This matter is on calendar for review regarding status of bankruptcy stay. Plaintiff has submitted a Status Conference Statement which indicates that judgment was entered in the bankruptcy proceeding on February 18, 2026 but that the matter has been appealed. This matter is continued to **Tuesday, January 18, 2027, at 9:00 a.m. in Department 64** for review regarding status of bankruptcy stay. Plaintiff shall file a Status Report at least five court days prior to the continued hearing date which addresses the status of the bankruptcy. No appearance is necessary on today's calendar.

EYE VS. FAIRWAY OAKS MOBILE HOME PARK, ET AL.

CASE NUMBER: 25CV-0208669

This matter is on calendar for review regarding status of service, responsive pleadings, and trial setting. Proof of service of summons is now on file for all Defendants. No responsive pleadings have been filed. Plaintiff has submitted a status report stating Plaintiff is in the process of retaining

new counsel and requesting a continuance. Today's review hearing is continued to **Monday, November 16, 2026 at 9:00 a.m. in Department 64** for review regarding status of responsive pleadings and status of counsel for Plaintiff. No appearances are necessary on today's calendar.

FIRST NATIONAL BANK OF OMAHA VS. DREW

CASE NUMBER: 25CVG-00368

This matter is on calendar for review regarding status of the case. Notice of Conditional Settlement was filed on March 12, 2026 indicating the matter would be dismissed no later than December 12, 2027. The matter is continued to **Monday, January 10, 2028 at 9:00 a.m. in Department 64** for status of dismissal. The Court intends to dismiss the matter without prejudice on that date per CRC 3.1385 unless good cause is presented. Any good cause must be presented at or before the hearing. No appearance is necessary on today's calendar.

FORSLUND, ET AL. VS. CALIFORNIA FAMILY MEDICAL GROUP, ET AL.

CASE NUMBER: 25CV-0207381

This matter is on calendar for trial setting. The Complaint in this matter was filed March 27, 2025. No status statements have been filed. The Court designates this matter as a plan III case and intends to set trial no later than March 23, 2027. Defendants have posted jury fees but Plaintiff has not. Plaintiff is granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to appear to provide the Court with available trial dates.

IN RE KOSOVAN, ET AL.

CASE NUMBER: 26PB-0033398

This matter is on calendar for confirmation of distribution of funds pursuant to the Court's July 6, 2026 Orders Approving Compromise of Claims for three minors. Confirmation of distribution of funds has been filed. Today's hearing is dropped from calendar, no appearances are necessary. The clerk is directed to close the file.

PORTFOLIO RECOVERY ASSOCIATES, LLC VS. FOOTE

CASE NUMBER: 25CVG-01284

This matter is on calendar for review regarding status of default. Defendant has been served but has not appeared. No request for entry of default has been filed. No status statement has been filed. An appearance is necessary on today's calendar to provide the Court with a status of the entry of default.

SANCHEZ VS. ACV AUCTIONS, INC., ET AL.

CASE NUMBER: 24CV-0206455

This matter is on calendar for review regarding status of arbitration. No status statement has been filed as ordered. An appearance is necessary on today's calendar to provide a status of arbitration.

SMITH VS. BRIDGEWAY INN & SUITES, ET AL.

CASE NUMBER: 23CV-0203137

This matter is on calendar for review regarding status of Plaintiff's successor-in-interest and default judgment. Plaintiff has filed an Amended Complaint pursuant to the Court's July 6, 2026, Order granting Plaintiff's motion to substitute successor in interest. No proof of service of the First Amended Complaint has been filed. No status statement has been filed. An appearance is necessary on today's calendar to provide a status.

THE PEOPLE OF THE STATE OF CALIFORNIA VS. \$371,690.00 UNITED STATES CURRENCY

CASE NUMBER: 26CV-0211306

This asset forfeiture matter is on calendar for status. The People filed a Petition for Forfeiture in Rem on July 21, 2026. No Claim Opposing Forfeiture has been filed. An appearance is necessary on today's calendar to provide a status of any related criminal matter.

THOMAS VS. WALKER

CASE NUMBER: 24CV-0206590

This matter is on calendar for review regarding status of service of summons. The court notes that on March 4, 2026, Plaintiff filed a proof of service showing subservice on Attorney Don Anderson for Michael Walker on February 26, 2026. The Court previously quashed service of summons as to this individual in an Order dated October 6, 2025, on the grounds that this Michael Walker had established he was incorrectly identified and is not the Michael Walker identified in the Complaint. Plaintiff had simply served this same individual again. No proof of service of summons on the correct Michael Walker named in the Complaint has been filed. An appearance is necessary on today's calendar to discuss status of service.

WU VS. HERZOG

CASE NUMBER: 25CV-0208538

This matter is on calendar for review regarding status of settlement. On August 10, 2026, Counsel for Plaintiff informed the Court orally that the parties had reached a settlement. No Notice of Settlement has been filed. No status statements have been filed. Appearances are necessary on today's calendar to discuss status of the case.